

M/s Shafi Ata Chaki Tajpur v. State of U.P.

Allahabad High Court · Division Bench · 30 March 2019 · WRIT - C No. 10222 of 2019 · **Writ disposed; bill-correctness dispute relegated to Clause 6.5; 30-day protection.**

HEADNOTE

A writ seeking a time-bound mandamus to decide a pending electricity-bill correction application, and protection for the petitioners' atta chakki, was not entertained because Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory remedy. The petitioners may approach the appropriate authority within 10 days; that authority is to decide by a speaking order after hearing, within 20 days; no coercive action for 30 days.

FACTUAL SUMMARY

The petitioners operate an atta chakki at Tajpur. Petitioner no. 2 applied on 14 January 2019 to the Executive Engineer, Dakshinanchal Electricity Distribution Nigam Limited, Electricity Parikshan Khand, Auraiya, seeking correction of an electricity bill. They petitioned the High Court for a mandamus directing that officer to decide the application within a time fixed by the Court, and for a direction not to interfere with running of the mill while the application remained pending.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correctness-statutory-remedy

HOLDING

A consumer disputing the correctness of an electricity bill must take the statutory remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005; a writ petition will not be entertained when that remedy is available. If the consumer approaches the appropriate authority within 10 days, the authority is to consider and decide the application in accordance with law by a speaking order after hearing, within 20 days of receipt of a certified copy; no coercive action is to be taken for 30 days. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL

Writ not entertained on merits; petitioners relegated to Clause 6.5. ¶ 1